

****May 18, 2022****

****Sanction for Violation of GDPR****

The National Supervisory Authority completed in April 2022 an investigation into the operator Kredyt Inkaso Investments RO S.A. and found violations of the provisions of Article 5, Article 6, Article 9, and Article 33 of the General Data Protection Regulation (GDPR).

The operator was sanctioned as follows: a fine of 24,740 lei (equivalent to 5,000 EURO) for violating the provisions of Article 5 paragraph (1) letters a), c), paragraph (2), Article 6, and Article 9 of the General Data Protection Regulation; a warning for violating the provisions of Article 33 of the General Data Protection Regulation.

The investigation was initiated following a complaint made by a data subject who reported that the operator Kredyt Inkaso Investments RO S.A. disclosed her personal data and that of her minor child to certain medical units.

During the investigation, it was found that the operator disclosed the complainant's data (home address, personal identification number, job position, data regarding the employment contract, data from medical leave certificates) to certain doctors and medical units with which she had no legal relations.

It was also found that the processing of data regarding the health status of the complainant could not be carried out based on legitimate interest, as this does not fall among the conditions for processing provided by Article 9 of the GDPR.

Therefore, the operator illegally processed the personal data of the complainant by unlawfully and excessively disclosing it, including data regarding health status, in violation of the processing principles provided by Article 5 paragraph (1) letters a), c), paragraph (2) and the legality conditions provided by Article 6 and Article 9 of the GDPR.

Additionally, it was found that the operator Kredyt Inkaso Investments RO S.A. did not comply with the deadlines for notifying the security incident that occurred at the time of disclosing the complainant's data to a doctor with whom the complainant had no legal relations, thus violating the provisions of Article 33 of the GDPR.

****Legal and Communication Directorate****

****N.S.A.P.D.C.P.****